

24NNCV05608 24NNCV05608

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-08

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES FROM DEFENDANT GLENDALE
ADVENTIST MEDICAL CENTER dba ADVENTIST HEALTH GLENDALE

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Case Number: 24NNCV05608 Hearing Date: July 8, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RAFIK KHUDABHKHSHYAN,

Plaintiff(s),

vs.

ADVENTIST
HEALTH GLENDALE,

Defendant(s).

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CASE NO.: 24NNCV05608

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES
FROM DEFENDANT GLENDALE ADVENTIST MEDICAL CENTER dba ADVENTIST HEALTH
GLENDALE

Dept.

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8:30

a.m.

July 8,
2026

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On February 13, 2026, plaintiff Rafik
Khudabkhshyan ("Plaintiff") filed this motion for orders compelling further
responses from defendant Adventist Health Glendale ("Defendant") to Request for

Admission ("RFA") Nos. 30 through 35, and 38, along with Form Interrogatory ("FROG") No. 17.1. Plaintiff also requests monetary sanctions against Defendant and its counsel of record.

The RFAs ask Defendant to admit certain facts about any investigations performed into the incident underlying this action, which involves Plaintiff falling off an operating table on September 1, 2023. The RFAs were the subject of an earlier motion Plaintiff filed on August 8, 2025 (which the Court granted on October 25, 2025).

Plaintiff takes issue with Defendant's latest responses on the grounds that Defendant maintains the objections that the Court previously overruled and its responses are based on a review of only nonprivileged information. Plaintiff is correct that Defendant's most recent responses incorporate objections that were deemed meritless. Therefore, they should not be included in its responses.

As for whether Defendant's substantive responses are sufficient, Defendant states that its responses were made "following a reasonable inquiry of the non-privileged information known or readily available" and that Defendant denies the request because "Defendant is presently unable to admit or deny based on lack of sufficient knowledge or information." Defendant argues that its responses to the RFAs are sufficient because they do not need to be based on privileged information. This makes sense because parties may assert objections based on privilege. (Code Civ. Proc., § 2033.230.) Defendant may claim that it has insufficient information to admit the matters requested and if, at trial, it "becomes clear from evidence introduced by either party at trial that the party who denied for lack of information or belief had access to the information at the time requests for admissions were propounded, sanctions are justified." (Smith v. Circle P Ranch Co., Inc. (1978) 87 Cal.App.3d 267, 275.)

Because Defendant must remove its inapplicable objections based on Evidence Code §§ 1157 and 1151 as well as the attorney-client privilege and attorney work product doctrine, a further response is required for RFA Nos. 30-35, and 38.

Defendant must also provide a further response to FROG No. 17.1. Defendant claims that the identities of its employees and medical staff are privileged pursuant to Evidence Code § 1151,

the attorney-client privilege, and the work-product doctrine, but fails to justify its assertion of these privileges.

Defendant is ordered to serve further responses to RFA Nos. 30-35 and 38, and FROG No. 17.1 within 20 days of the date of this answer. Sanctions are imposed upon Defendant and counsel of record in the reduced amount of \$2,071.76, consisting of 5 hours at Plaintiff's counsel's reasonable hourly rate of \$400 and a \$71.76 filing fee.

Dated
this 8th
day of July 2025

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.